

Authority for Personal Data
P.O. Box 93374, 2509 AJ The Hague
Hoge Nieuwstraat 8, 2514 EL The Hague
T 070 8888 500 - F 070 8888 501
autoriteitpersoonsgegevens.nl
The Minister of Social Affairs and Employment
P.O. Box 9080
2509 LV THE HAGUE

Date

May 15, 2024

Our reference

z2024-007175

Your letter dated

February 29, 2024

Your reference

2024-0000059249

Subject

Legislative assessment of the draft bill to amend the reintegration obligations in the second year of illness for employees of small and medium-sized employers

Dear Ms. Van Gennip,

In your letter dated February 29, 2024, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, paragraph 4, of the General Data Protection Regulation regarding the draft bill amending the reintegration obligations in the second year of illness for employees of small and medium-sized employers (hereinafter: the draft). In addition to the explanatory memorandum, the Paragraph on data sharing of the draft bill for the second track in the second year of illness has been submitted, which will be added to the explanatory memorandum. By email dated April 2, 2024, the draft was supplemented with provisions regarding and an explanation of the medical decision-making scheme.

The AP has a remark on the draft.

Main point

- The proposed delegation provision is insufficiently concrete and precise.

Scope of the draft

When an employee is ill, the employer is obliged to pay at least 70% of the salary for a period of 104 weeks.¹ In addition, the employer must make efforts during these 104 weeks to reintegrate the employee into their own (adjusted) work and other suitable work ('first track reintegration'). The employer must also make efforts to reintegrate the employee with another employer in suitable work ('second track reintegration'). The employee is obliged to cooperate in this.

¹ Unless the employment contract of the employee ends earlier.

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The draft proposes that the small and medium-sized employer², in joint consultation with the sick employee, under certain conditions, after the first year of illness has the option to terminate the reintegration via the first track. And from the start of the second year of illness, to focus on reintegration in the second track. If there is no agreement, the employer can ask the Employee

Insurance Agency (UWV) for permission to terminate the reintegration in the first track.

The aim of this is to make the small and medium-sized employer more agile by providing clarity on how long they must keep the sick employee's own position available, so that they can proceed to replace the employee sooner.

Legislative assessment

Concretizing the delegation basis

If the employer requests permission from the UWV to terminate the reintegration in the first track, the UWV will assess this against a number of conditions. For this purpose, the UWV processes (special) personal data, which it obtains from the employer, the employee, and the company doctor.

According to the explanation of the draft, a ministerial regulation will specify which data must be maintained and provided in this context.³ The Ministry of Social Affairs and Employment has indicated, upon request, that the proposed Article 7:645aa, paragraph 16,4 of Book 7 of the Civil Code contains the delegation basis for this. It will read:⁵

By regulation of Our Minister of Social Affairs and Employment, further rules will be established regarding the procedure for granting permission as referred to in paragraphs 1 and 7.

Delegation of regulatory authority must be defined as concretely and precisely as possible in the delegating regulation.⁶ The mentioned delegation provision does not indicate that the data processing will be specified by ministerial regulation.

The AP concludes that the delegation provision is insufficiently concrete and precise because it does not indicate that the data processing will be specified by ministerial regulation, making supplementation necessary.

2 Up to 100 employees.

3 Paragraph on data sharing of the draft bill for the second track in the second year of illness, p. 1.

4 This concerns the sixteenth paragraph after the introduction of the paragraphs on the medical decision-making scheme.

5 Email dated April 2, 2024.

6 Guideline 2.23 of the Guidelines for Legislation.

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Workload of the AP

The AP notes that the draft is not expected to require additional effort from the AP.

Publication

This legislative assessment will be published on the AP website within two weeks.

Yours sincerely,

Authority for Personal Data,

Aleid Wolfsen

Chairman

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- Annex

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Assessment Framework AP

The AP examines whether the draft regarding the processing of personal data is in accordance with the Charter of Fundamental Rights of the European Union (EU), the GDPR (Regulation 2016/679), or the Police and Justice Directive (Directive 2016/680), the general legal principles of the EU, and other relevant law, whereby it must be sufficiently demonstrated that the principle of proportionality is met, by:

1. the draft being suitable for achieving the pursued objective of general interest or the protection of the rights and freedoms of others (suitability);
2. the objective cannot reasonably be achieved as effectively by other means that are less intrusive to the fundamental rights of the data subjects (subsidiarity);
3. the interference is not disproportionate to that objective, which particularly implies a balancing of the importance of the objective and the severity of the interference (proportionality);
4. the draft is sufficiently clear and precise regarding the scope and is predictable in its application (legal certainty);
5. the draft sufficiently indicates under what circumstances and conditions personal data may be processed, thereby ensuring that the interference is limited to what is strictly necessary (substantive and procedural safeguards); and
6. the draft is binding under national law (bindingness under national law).

The AP pays particular attention to the rights of data subjects and the compliance of the draft with Article 6, paragraphs 1 and 3, and Article 9 of the GDPR (Regulation 2016/679), or Articles 8 and 10 of the Police and Justice Directive (Directive 2016/680), as well as with the principles established in Article 5 of the GDPR or Article 4 of the Directive. This implies, among other things, that:

- (a) processing must be lawful, fair, and transparent with respect to the data subject;
- (b) personal data may only be collected for specified, explicitly defined, and legitimate purposes; and
- (c) processing must be adequate, relevant, and limited to what is necessary for the purposes.

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